

		change as there is no indication Judge Oberholzer was “mistaken.” Rather, he acknowledged in the tentative ruling that, “the real issue is whether any of Plaintiff’s ‘new evidence’ filed in Opposition to this motion can create a triable issue of material fact as to gross negligence.” After reviewing the new evidence, he concluded that the MSJ should be granted. Nothing at oral argument persuaded him differently. Whether the court’s conclusion was or was not correct must be determined in a different way, and not by a motion for reconsideration. Defendants to give notice of this ruling and prepare a judgment based on the court’s previous order granting summary judgment.
107	Kim vs. Kim, 2021-01183125	Motion to Appoint Limited Receiver – GRANTED Plaintiff Mira Kim (“Mira”) filed a Motion for Appointment of Limited Receiver. Defendant Anna Kim opposes the motion. The court is well acquainted with the parties and their claims in this matter, having just completed a jury trial in this case. The verdict did not affect the need for the court to hear and rule on this motion, however. “A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: (1) In an action . . . between partners or others jointly owning or interested in any property or fund, on the application of the plaintiff, . . . where it is shown that the property or fund is in danger of being lost, removed, or materially injured. . . . [¶] (6) Where a corporation is insolvent, or in imminent danger of insolvency, or has forfeited its corporate rights. . . . [¶] (9) In all other cases where necessary to preserve the property or rights of any party.” (Code Civ. Proc., § 564, subd. (b)(1), (6), (9).) “The rule is established that the appointment of a receiver rests largely in the discretion of the trial court and that its action in appointing a receiver or its refusal of an application for the appointment of such an officer

will not be disturbed in the absence of a showing that the court’s discretion has been abused.” (City and County of San Francisco v. Daly (1993) 16 Cal.App.4th 734, 744.)

“In a civil action, a receiver is an agent and officer of the court, and property in the receiver’s hands is under the control and continuous supervision of the court.” (People v. Stark (2005) 131 Cal.App.4th 184, 204.) However, “[b]ecause the appointment of a receiver transfers property...out of the hands of its owners and into the hands of a receiver [citation], the appointment of a receiver is a very drastic, harsh, and costly remedy that is to be exercised sparingly and with caution.” (Koenig v. Centralia Limited Investors (2025) 112 Cal.App.5th 1174, 1192 [internal quotations omitted].)

“[R]eceivers are often legal luxuries, frequently representing an extravagant cost to a losing litigant. When it appears that no reasonably certain benefit will result to one litigant, and a distinct disadvantage will result to another, courts should weigh carefully the propriety of appointing a receiver.” (City and County of San Francisco v. Daly (1993) 16 Cal.App.4th 734, 744.)

Here, most of the relevant facts are undisputed. Specifically, it is undisputed that in December 2024, May Enterprise, LLC (“May”) defaulted on a promissory note with Hanmi Bank, which was secured by a Deed of Trust on May’s primary asset—a hotel property located at 525 South Harbor Boulevard in San Pedro, California (the “Property”). (ROA 1069, Mira Kim Decl. ¶¶ 2, 5, 13.) On March 23, 2026, Hanmi Bank recorded a Notice of Default and Election to Sell Under Deed of Trust against May Enterprise. (Fletcher Decl., ¶ 4, Exh. 3.) The Notice of Default indicated that the amount owed as of February 19, 2026 was \$3,293,632.38. (Ibid.) The parties do not dispute that the Property had significant value, but that May’s bank account and cash on hand could not repay the outstanding balance owed on the Hanmi Loan. (ROA 1069, Mira Kim Decl. ¶ 13.)

A foreclosure sale is now imminent, as the Notice of Default indicates that the date of the foreclosure sale

may be set 90 days after recordation of the Notice of Default, which is June 21, 2026. The date of the sale may be no earlier than three months and 20 days after the notice of recordation. (Civ. Code, §2924.)

Mira, as 2/3 owner and Manager of May, contends she has been unable to obtain funding to pay off the Hanmi Loan due to Anna (the remaining 1/3 owner) continually vetoing all options presented. (ROA 1069, Mira Kim Decl., ¶¶ 11, 19-23.) Section 5.01 of May's Operating Agreement requires unanimous consent of all Members for certain decisions, including incurring any debt not in the ordinary course of business. (ROA 169, Mira Kim Decl., ¶ 3, Exh. A.)

Mira asks the Court to appoint a receiver for the limited purpose of securing funds to repay approximately \$3.2 million on the defaulted Hanmi Loan before the Property, which is May's sole operating asset, is lost to foreclosure.

Anna, who is the only other Member of May, opposes the motion, contending that it is too late for a receiver to be able to accomplish the stated task, and thus there is no point in having May incur additional expenses. Anna further argues that Mira is impermissibly attempting to use the receiver as a workaround to avoid the unanimous consent provision of the Operating Agreement.

The jury trial of this matter was recently completed, with the jury awarding \$12,000 in compensatory damages and \$1.9 million in punitive damages to May. (ROAs 1419-1420.)

A receiver may well be able to procure funding, particularly in light of the recent verdicts. It is also clear that the loss of the Property through foreclosure is imminent. Further, a sale by foreclosure is a forced sale which will result in a significantly below market value sale price, thus resulting in substantial financial loss to May. (See Sussman Decl. ¶¶ 8-10.)

		Additionally, this motion has been pending for more than two months, during which time Mira and Anna have not been able to agree to any path forward—despite Anna’s testimony that she is “still willing to cooperate with Mira to find a reasonable resolution to the Hanmi Loan situation.” (ROA 1368, Anna Decl. ¶ 15.) Anna does not object to the qualifications or rates proposed by Mira’s proposed receiver, Kevin Singer. Mr. Singer has presented a declaration with his qualifications and also declares that he is not “(i) associated with, or employed by, any party in this matter or any attorney in this matter; (ii) interested in the property or in this action; or (iii) related to any judge of this Court by consanguinity or affinity within the third degree.” (Singer Decl. ¶ 5.) Where a Court proceeds to appoint a receiver, “[t]he receiver shall give an undertaking to the State of California, in such sum as the court or judge may direct, to the effect that the receiver will faithfully discharge the duties of receiver in the action and obey the order of the court therein.” (Code Civ. Proc., §567, subd. (b).) Mira proposes a bond amount of \$10,000, to which Anna does not object. The Court therefore adopts the proposed amount. In the exercise of its discretion, the court GRANTS the motion for appointment of a limited receiver, and appoints Kevin Sanger as the limited receiver. The court orders that a \$10,000 bond be posted. Plaintiff to give notice.
108	Morton vs. Chevron, 2025-01487002	Motion - Other (Alternate Service) – VACATED Plaintiff, Robert Morton, moves for an order allowing alternate service by mail and email. On November 13, 2025, this case came on for hearing for a Case Management Conference. (See ROA 12.) There was no appearance by any party, and the Court set an Order to Show Cause re: Dismissal/Sanctions for Failure to Appear and Failure to Serve, providing the following